

Court No. - 3

Case :- WRIT - C No. - 4465 of 2022

Petitioner :- Anuttam Kumar Pandey

Respondent :- Uttar Pradesh Power Corporation And 2 Others

Counsel for Petitioner :- Sanjay Kumar Singh

Counsel for Respondent :- Udit Chandra, Samir Srivastava

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Shri Sanjay Kumar Singh, learned counsel for the petitioner and Shri Samir Srivastava, learned counsel appearing for the respondents.

This writ petition has been filed praying for the following relief:

"A. Issue a writ order or direction in the nature of certiorari quashing the demand notice dated 05.01.2022 issued by the respondent no. 2, by means of which an amount of Rs.5,62,123 by means of which petitioner was directed to pay the aforesaid amount.

B. Issue a writ order or direction in the nature of mandamus directing the respondent no. 2 to decide the representation dated 31.01.2022 and further restrain the respondent authorities to take any action against the petitioner during the pendency of aforesaid representation."

Shri Sameer Srivastava, learned counsel for the respondents /Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed off** giving liberty to the petitioner to submit his objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the respondent No. 2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent no. 2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 31.5.2022

o.k.